



DEPARTMENT OF PUBLIC SAFETY

Executive Director's Office, Office of School Safety

SCHOOL SECURITY DISBURSEMENT PROGRAM

8 CCR 1507-71

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1. Authority

This regulation is adopted pursuant to the authority in Section 24-33.5-1810 (7), C.R.S. and is intended to be consistent with the requirements of the State Administrative Procedures Act, section 24-4-101 et seq., C.R.S. (the "APA").

2. Scope and Purpose

This regulation shall govern the implementation of the School Security Disbursement Program, which includes the time frames for applying for this program, the form of the program application, and the time frames for distributing program funds.

3. Applicability

The provisions of these rules shall be applicable to all eligible applicants and recipients of program funds as provided by law.

4. Definitions

"Disbursement Program" means the School Security Disbursement Program to disburse funds to local education providers for the purpose set forth in § 24-33.5-1810(3), C.R.S. to improve security in public school facilities or vehicles.

"Eligible entity" means a local education provider, or a combination of local education providers, or an eligible nonprofit organization.

"Eligible nonprofit organization" means a nonprofit organization that is exempt from taxation under section 501(c)(3) of the federal "Internal Revenue Code of 1986", as amended, that applies to work with specific local education providers or first responders, and that:

- (I) Has experience providing training for school safety incident response;
- (II) Has experience working with law enforcement agencies and other first responders;
- (III) Has experience working with school districts, school personnel, and students on issues related to school safety incident response; and
- (IV) Identifies in its application local education providers or first responders that will participate in school safety incident response training or programs.

"Local Education Provider" means a school district, a charter school that is authorized pursuant to part 1 of article 30.5 of title 22, an institute charter school authorized pursuant to part 5 of article 30.5 of title 22, or board of cooperative services as defined in Section 22-5- 103, C.R.S.

"Recipient" means an eligible entity receiving an award from the disbursement program.

"Award" means financial assistance that provides support to accomplish a public purpose given by the state to an eligible recipient.

"Period of Performance" means the period of time during which the recipient is required to complete the approved activities and to receive and expend approved funds.

"Match Amount or Local Share" means the portion of the project borne by the applicant, not borne by the State. Local share can include cash and/or in-kind non-cash contributions.

5. Program Requirements

5.1 Eligibility

- A. The disbursement program shall accept and review applications for awards from eligible entities only.
- B. In order to be considered for an award from the disbursement program, eligible entities must submit an application developed by the Executive Director's Office, Office of School Safety in conformance with the application and the terms of the program guidance described below.
- C. The program funds may only be used for the following purposes:
 - 1. Capital construction that improves the security of a public school facility or public school vehicle, including any structure or installed hardware, device, or equipment that protects a public school facility or public school vehicle and the students, educators, and other individuals who attend, work in, or visit a public school facility or are transported in a public school vehicle from threats of physical harm including but not limited to any structure or installed hardware, device, or equipment that:
 - a. Prevents the entry of unauthorized individuals into a public school facility or a protected space within a public school facility or onto a public school vehicle; or
 - b. Can be used to expedite communication when a threat is present;
 - 2. Training in student threat assessment for all school building staff who have contact with students, which must include best practices for conducting threat assessments, such as instruction on how to prevent bias when conducting a threat assessment;
 - 3. In collaboration with local law enforcement agencies, providing the training for peace officers on interactions with students at school;
 - 4. School emergency response training for all school building staff;
 - 5. Programs to help students become more resilient in meeting the daily challenges they face without resorting to violence against themselves or others, including addressing the fundamental causes of violence and aggression and helping students become responsible members of their schools, neighborhoods, communities, and families;
 - 6. Developing and providing training programs, curricula, and seminars related to school safety incident response;
 - 7. Developing best practices and protocols related to school safety incident response;

- 8. Implementing a school resource officer program; and
- 9. Implementing a co-responder program.
- D. The contract agreement between the State and the recipient(s) of the program will specify additional requirements, including, but not limited to: performance measures, reporting requirements, and monitoring of recipient's activities and expenditures.
- E. Additionally, the following criteria will be evaluated in awarding any grant:
 - 1. The likely effectiveness of the applicant's use of the disbursed money to improve security in public school facilities or vehicles; and
 - 2. The availability and commitment of the applicant to use financial resources (cash or in-kind) to provide local matches to support this program.

5.2 Award Details

- A. Period of Performance: Twenty-eight (28) Months
- B. Funding Instrument: Discretionary

5.3 Time Frames for Application

- A. Time Frames

Application Submission Deadline:	January 5, 20xx; 5:00 PM MST
Grant Awarded to Applicants Deadline:	March 1, 20xx
Grant Fund Distribution Deadline:	April 30, 20xx
Period of Performance – 28 months:	March 1, 20xx – June 30, 20xx

- B. Restrictions

- 1. Applications that are not submitted by the stated application submission deadline will not be reviewed or considered for funding.
- 2. Pre-award costs are NOT allowed under this program (costs incurred or work completed prior to application).

5.4 Application Submissions

- A. Applicants must submit a hard copy of their signed application via U.S. mail and email an electronic copy of their application as specified in the program application.

5.5 Grant Guidance

The Executive Director's Office, Office of School Safety is responsible for the implementation of this grant program and will develop and publish a grant application and guidance.

Editor's Notes

History

New rule eff. 11/30/2023.

Rules 4, 5.1 emer. rules eff. 01/11/2024; expired 05/10/2024.

Entire rule eff. 05/30/2024.